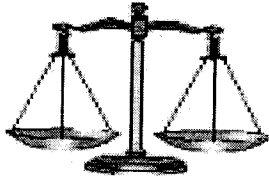


Ren Rong Pan Attorney At Law

E-mail: rpanlaw@yahoo.com



GLORY CHINA TOWER

11 East Broadway, Suite 4B

New York, NY 10038

Tel: (212) 406-5533

Fax: (212) 964-5030

January 16, 2018

Ms. Rachel E. Dickon – Assistant Secretary to
Hon. Clay G. Guthridge
FEDERAL MARITIME COMMISSION
800 North Capital Street, N.W.
Washington, DC 20573-0001

**Re: Filing of Respondent's Verified Answer
Hangzhou Qianwang Dress vs. RDD Freight Int'l
Docket No. 17-02**

Dear Judge Guthridge:

This law office represents RDD Freight International Inc., Respondent in the captioned FMC action. With respect to Judge Guthridge's Order to file status reports, I wish to report the following:

1. RDD served "First Request for Production of Documents" dated 10/25/17 on the Complainant at its designated mailing address; however, other than a superficial answer, Complaint has been coy about the questions raised and refused to produce information requested therein. See Exhibit A - Rdd's Request and Complainant's Answer.
2. RDD did receive the Complainant's Request for the Production of Documents and Things (undated) mailed from "Lan Ye" of 36-38 Main Street, Flushing, NY 11355.
3. RDD did try to provide the documents requested, but stopped short, because:
 - a. The documentation requested is already in the Complainant's possession such as the Bills of Ladings and Bond information;
 - b. RDD is still befuddled and deeply troubled by the Complainant's brazen disregard of the Judge's previous Order dated April 28, 2017 in which Complainant was ordered not to use "Lan Ye" but designate an attorney or authorized employee under 46 CFR Section 502.22; and yet, Lan Ye was and still is acting on behalf of

Page 2 – Letter to FMC 1/16/18

the Complainant! For instance, the Complainant's Discovery Request designated "the offices of Lan Ye" as the place for document inspection – as if she is the Complainant's attorney! Under Judge Guthridge's Order dated April 28, 2017, the Complainant was strongly advised to hire an attorney. See Exhibit B – Preamble of the Complainant's Request and Exhibit C - Cover Envelope of the Complainant's undated Request for Production.

- c. The Letter Report submitted alleged by the Complainant on Jan. 2, 2018 was signed and its digital signature shows "Anna Lam of Kids Apparel Club" is the author. Upon information and belief, Kids Apparel Club was the consignee, which had fraudulently obtained the goods without paying – the very cause of the Complainant's alleged damages! This fact is strong proof of RDD's Counterclaim that the Complainant and its Consignee have conspired to defraud it out of its bund monies. See Exhibit D attached hereto.
4. RDD hereby asks this Court to grant leave for filing a motion to compel the Complainant to produce full discovery as requested; to hire an attorney to prosecute its claims without causing unfair expenditures to RDD as incurring from the beginning of this case; and to dismiss the underlying Complaint in fairness and justice under the Federal Rules.

Thank you for your anticipated courtesies in this matter.

Very truly yours,



REN RONG PAN, ATTORNEY AT LAW

RRP:ck
Encls.

FEDERAL MARITIME COMMISSION

-----x

HANGZHOU QIANWANG DRESS CO., LTD. Docket No. 17-02

Complainant,

**FIRST REQUEST FOR
PRODUCTION
OF DOCUMENTS**

-against-

RDD FREIGHT INTERNATIONAL INC.

Respondent.

-----x

PLEASE TAKE NOTICE, that pursuant to Rules 26 and 34 of the Federal Rules of Civil Procedure as well as the FMC Rules of Evidence, Respondent RDD FREIGHT INTERNATIONAL INC. ("RRD") requests that Complainant produce the following documents for inspection and copying at the offices of Defendant's attorneys, , on or before November 28, 2017. This request is to be deemed continuing up to and including the time of trial, and RDD shall be permitted to inspect and copy any documents not presently available which may become available.

DEFINITIONS AND INSTRUCTIONS

Notwithstanding any definition below, each word, term, or phrase used in these document requests is intended to have the broadest meaning permitted under the Federal Rules of Civil Procedure.

1. *Concerning:* The term "concerning" means relating to, referring to, describing, evidencing, or constituting.
2. *Communication:* The term "communication" means the transmittal of information by any means.

3. *Document:* The terms "document" and "documents" are defined to be synonymous in meaning and equal in scope to the usage of the term "documents" in Fed. R. Civ. P. 34(a) and include(s) the term "writing". Unless the producing party demonstrates undue burden or other grounds sufficient to meet the requirements of Fed. R. Civ. P. 26(c), electronic mail is included within the definition of the term "document". The terms "writings", "recordings", and "photographs" are defined to be synonymous in meaning and equal in scope to the usage of those terms in Fed. R. Evid. 1001. A draft or non-identical copy is a separate document within the meaning of the term "document".

4. *Identify (with respect to persons):* When referring to a person, to "identify" means to state the person's full name, present or last known address, and, when referring to a natural person, additionally, the present or last known place of employment. If the answering party knows the business and home telephone numbers, and if the person is not a party or present employee of a party, said telephone numbers shall be provided. Once a person has been identified in accordance with this subparagraph, only the name of the person need be listed in response to subsequent discovery requesting the identification of that person.

5. *Identify (with respect to documents):* When referring to documents, to "identify" means to state the: (i) type of document; (ii) general subject matter; (iii) date of the document; and, (iv) author(s), addressee(s), and recipient(s) or, alternatively, to produce the document.

6. *Occurrence/Transaction:* The terms "occurrence" and "transaction" mean the events described in the Complaint and other pleadings, as the word "pleadings" is defined in Fed. R. Civ. P. 7(a).

7. *Parties:* The terms "Complainant" and "Respondent," as well as a party's full or abbreviated name or a pronoun referring to a party, mean that party and, where applicable,

its officers, directors, and employees. This definition is not intended to impose a discovery obligation on any person who is not a party to the litigation or to limit the Court's jurisdiction to enter any appropriate order.

8. *Person:* The term "person" is defined as any natural person or any business, legal or governmental entity or association.

9. *You/Your:* The terms "you" or "your" include the person(s) to whom these requests are addressed, and all of that person's agents, representatives, and attorneys.

10. The present tense includes the past and future tenses. The singular includes the plural, and the plural includes the singular. "All" means "any and all," "any" means "any and all." "Including" means "including but not limited to," "and" and "or" encompass both "and" and "or." Words in the masculine, feminine, or neuter form shall include each of the other genders.

11. In addition to the definitions Rule 34 of the Federal Rules of Civil Procedure, documents covered by this request include any documents subject to Plaintiff's direction and control and/or that of Plaintiff's counsel wherever located or moved, including all translations of documents in a language other than English and materials concerning each and every such translation.

12. "Cargo" means the shipments that are the subject of this dispute.

13. " Complainant " means HANGZHOU QIANWANG DRESS CO., LTD., the shippers, the consignees, and/or the owners of the Cargo.

14. In the event that any document within the scope of this request is withheld from production upon a claim of privilege, you are requested to serve upon Defendant on the date fixed for inspection and copying of the documents requested herein a written identification of each document withheld from production, setting forth as to each such document:

- i. the nature of the privilege claimed;

- ii. the date of the document;
- iii. the type of document (i.e., whether it is a letter, memorandum, facsimile, etc.);
- iv. the subject matter of the document;
- v. the name and last known business address of each person who made, prepared or signed the document;
- vi. the name and last known business address of each person to whom the document was addressed and each person to whom a copy was sent;
- vii. the name and last known business address of any person who at any time had custody, possession or control of the original or a copy of the document, and the name of, address of, and his or her position with the business entity by which he or she was then employed; and
- viii. the present location of the document.

DOCUMENT REQUESTS

1. All documents created or originated at the loading port regarding the Cargo carried under bills of lading Nos. NBE16081082 dated Aug. 25, 2016; NBE16081407 dated Aug. 31, 2016 and NBE16091121 dated Sept. 16, 2016.

2. To the extent not encompassed in other requests herein, all correspondence with the shippers, the consignees, and/or the owners of the Cargo regarding the Cargo carried under the aforesaid bills of lading.

3. To the extent not encompassed in other requests herein, all of the underlying sales contracts with the Complainant and/or the ultimate consignees for the Cargo shipped pursuant to the aforesaid bills of lading.

4. To the extent not encompassed in other requests herein, all documents that concern or relate to the Cargo carried under the aforesaid bills of lading, including, but not limited to, the ultimate disposition of the cargo.

5. To the extent not encompassed in other requests herein, all documents that concern or relate to all investigations or inspections made on or on behalf of consignee or you of the alleged failure to receive payments for the Cargo shipped under the aforesaid bills of lading.

6. To the extent not encompassed in other requests herein, all documents that concern any attempts to obtain payment, the ultimate disposition and/or destruction of the Cargo referenced in the above requests.

7. To the extent not encompassed in other requests herein, all documents that support the damages pertaining to the Cargo referenced in the above requests claimed by Complainant in the Complaint.

Dated: New York, New York
Oct. 24, 2017

By: 

REN RONG PAN ATTORNEY AT LAW

Attorneys for Respondent
11 East Broadway, Suite 4B
New York, NY 10038
(212) 406-5533

CERTIFICATE OF SERVICE

I hereby certify, pursuant to Title 28 U.S.C. §1746 and FMC Rules, that on October 25, 2017,

I served a true and correct copy of the following document:

- 1) First Request for Production of Documents
- 2) First Set Interrogatories

by mailing it in a sealed envelope, with postage prepaid thereon, in an official depository of the U.S. Postal Service within the State of New York, to be delivered by First Class Mail to:

HANGZHOU QIANWANG DRESS CO., LTD., c/o Lan Ye, 36-38 Main Street, Flushing, NY 11355

and by e-mailing it to HANGZHOU QIANWANG DRESS CO., LTD. at echohats@aliyun.com

I declare under penalty of perjury that the foregoing is true and correct.

Dated: New York, New York
October 25, 2017



REN RONG PAN ATTORNEY AT LAW

HANGZHOU QIANWANG DRESS CO.,
LTD.,

Plaintiff,

v.

RDD FREIGHT INTERNATIONAL INC.,

Defendant.

Docket No.: 17-02

INITIAL DISCLOSURE

following:

(A) The name and, if known, the address and telephone number of each individual likely to have discoverable information that the disclosing party may use to support its claims or defenses, identifying the subjects of the information.

Name	Address	Subject Matter(s)
Xingliang (Echo) Qian	+86 1895808 1955 echohats@ aliyun.com	Defendant released on three separate occasions (3) containers of cargo to consignee of record. We never authorized RDD to release cargo. We never received payment for the cargo.

(B) A copy of, or a description by category and location of, all documents, data compilations, and tangible things that are in the possession, custody, or control of the party and that the disclosing party may use to support its claims or defenses, unless solely for impeachment.

All pertinent records were attached to an initial complaint including copies of original bill of lading, commercial invoices, and packing lists.

(C) A computation of any category of damages claimed by the disclosing party, making available for inspection and copying the documents or other evidentiary material, not privileged or protected from disclosure, on which such computation is based, including materials bearing on the nature and extent of injuries suffered.

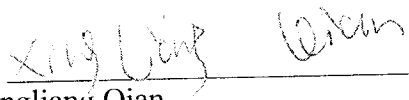
Damage is a total cost of 3 released cargo $\$22,796.82 + \$57,273.48 + \$54,137.40 =$
\$134,207.70

(D) For inspection and copying as under Rule 34 any insurance agreement under which any person carrying on an insurance business may be liable to satisfy part or all of a judgment which may be entered in the action or to indemnify or reimburse for payments made to satisfy the judgment.

RDD is bonded and insured as a register freight forwarder. We respectfully request the name of the insurance company and policy# so we may name them as a defendant in the case as well.

Dated: New York, New York
October 19, 2017

Respectfully submitted,
HANGZHOU QIANWANG DRESS CO.,LTD



Xingliang Qian

FEDERAL MARITIME COMMISSION
800 N. CAPITOL STREET, NW
WASHINGTON, DC 20573-001

HANGZHOU QIANWANG DRESS CO.,	)	Docket No.: 17-02
LTD.,	)	
Plaintiff,	)	
	)	
v.	)	REQUEST FOR THE PRODUCTION
	)	OF DOCUMENTS AND THINGS
RDD FREIGHT INTERNATIONAL INC.,	)	
	)	
Defendant.	)	
	)	
	)	
	)	
	)	

PLEASE TAKE NOTICE, that pursuant to Rules 26 and 34 of the Federal Rules of Civil Procedure as well as the FMC Rules of Evidence, Complainant HANGZHOU QIANWANG DRESS CO., LTD., ("Plaintiff") requests that Respondent RDD FREIGHT INTERNATIONAL INC. ("Defendant") produce the following documents for inspection and copying at the offices of Lan Ye 36-38 Main Street Flushing, NY 11355, on or before November 28, 2017.

This request is to be deemed continuing up to and including the time of trial, and HANGZHOU QIANWANG DRESS CO., LTD shall be permitted to inspect and copy any documents not presently available which may become available.

REQUESTS

Request No.: 1

Produce copy of your license with FMC to clear goods as a freight forwarder.

an Ye
36-38 Main Street
Flushing, NY 11355



7016 0910 0002 3044 7093



1000



10038

U.S. POSTAGE
PAID
NEW YORK, NY
10018
NOV 08 17
AMOUNT

\$4.96

R2304E105115-14

REN LONG PAN
11 East Broadway Suite 4B
New York, NY 10038

Property	Value
Description	
Title	KIDS APPAREL CLUB
Subject	
Tags	
Categories	
Comments	
Origin	
Authors	Anna Lam
Last saved by	Kids Club
Revision number	2
Version number	
Program name	Microsoft Office Word
Manager	
Content created	1/7/2018 11:36 AM
Date last saved	1/7/2018 11:36 AM
Last printed	6/28/2017 5:04 PM
Total editing time	00:01:00

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